

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

June 23, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV43463	Sandra Diaz-Kelly et.al. vs. Flowers Baking Company of Modesto	Plaintiff moves this Court to withdraw its admissions deemed admitted order. Plaintiff files this motion fourteen months after the order was entered by this Court. In addition, Plaintiff appeared at the hearing and failed to enter an objection at the time the hearing was heard. Plaintiff's motion is DENIED.
9:00 2	24CV437781	Rose Bouguerba v. Robert Belstock	Plaintiff petitions this court to compel defendant to comply with a civil service subpoena demanding defendant's appearance and production of documents. Defendant borrowed money from plaintiff but failed to pay back the money despite a default judgment. In this case, defendant was served with a civil subpoena but has failed to appear on several occasions for an order of examination and has produced no document. Under CCP 1987.1(a), the court may enforce a civil subpoena. Plaintiff's petition is GRANTED.
9:00 3	24CV454605	Jenna Arruda vs. Trena Suttcliffe	Defendant petitions this Court to compel defendant to produce further responses to production of records set 2. Plaintiff placed her mental health at issue in this case. Defendant's request is relevant and the Plaintiff's privacy is protected through a protective order. Defendant's petition is GRANTED. Defendant moved for monetary sanctions against Plaintiff. The motion for sanctions is DENIED.
9:00 4	24CV454683	Nancy Elizondo vs. California Casualty Indemnity Exchange	See below
9:00 5	25CV45894	Kostick and Wang, LLC vs. Jia Sun	Plaintiff moves this court to strike Defendant's answer to Plaintiff's complaint. Defendant has failed to respond to court orders compelling production of records and responses and has failed to pay court ordered monetary sanctions. Plaintiff's motion is GRANTED. Plaintiff moves this court for monetary damages of \$1,500. Plaintiff's motion for monetary damages is GRANTED.
9:00 6	25CV474000	Ravnil Kumar vs. Life Moves	See below
9:00 7	25CV475646	Kevin Lu vs. Kelley Paul	Court recuses itself.
9:00 8	25CV482242	Carlos Perez vs. Seven Trees Village Association	Plaintiff petitions this court to compel Defendant to produce records. Defendant responds that production has occurred and that Plaintiff failed to pay for assembly of records. CCP 5205 does not authorize payment for record assembly. Plaintiff's petition is GRANTED. Plaintiff's petition for civil penalties is DENIED.
9:00 9	26CV487931	Santa Clara Water Valley District vs. The San Jose Unified School District	Plaintiff petitions this court for prejudgment possession of easements located in an elementary school. Predjudgment possession requires that public interest and necessity require the project; that the project is placed or located in a manner most compatible with the greatest public good and the least private injury; and the subject property is necessary for the project. The court finds that the plaintiff has not met its burden of showing that the project is located in a manner most compatible with the greatest public good and the least private injury. Plaintiff fails to provide evidence as to why the specific location is necessary and why the project cannot be located elsewhere that does not interfere with the educational and recreational needs of an elementary school and the wider community as a whole. Plaintiff's petition is DENIED.
9:01 1	23CV461020	Helloha Coffee,et.al. vs. The Clove Art Complex	Defendant's attorney moves this court to withdraw his representation of Defendant. Motion is GRANTED.

Calendar Line 4

Case Name: *Elizondo v. California Casualty Ins. Co.*

Case No.: 24CV454683

On December 17, 2025, the Court [Hon. Pennypacker] sustained defendant California Casualty Indemnity Exchange’s (“Defendant”) demurrer to the first amended complaint (“FAC”) with leave to amend on the ground that it failed to state facts sufficient to constitute a cause of action because it was barred by the statute of limitations. While plaintiff Nancy Elizondo (“Plaintiff”) contended that “the last wrongful act did not occur until May 24, 2024, when the arbitration award as reduced to a judgment in the superior court... [and that] ‘the parties were still briefing the issues well into 2023’ and CCIE’s actions in seeking to confirm the arbitration award were also made in bad faith and are part of the continuing violations”; however, the court noted that “the FAC does not allege any wrongful act occurring after November 8, 2022.” (December 17, 2025 order re: demurrer to FAC, p.5.) Indeed, the FAC alleged that “[o]n August 10, 2020, plaintiff ELIZONDO issued a demand to CCIC for settlement of plaintiff’s claims for \$200,000, or the policy limit for underinsured motorist coverage through plaintiff’s CCIC Policy... [however, i]n response, defendant CCIC denied ELIZONDO’s claims for injury and damage pursuant to the CCIC Policy.” (FAC, ¶ 15.)

On January 15, 2026, Plaintiff filed a second amended complaint (“SAC”), asserting the prior first two causes of action for breach of the implied covenant of good faith and fair dealing and intentional infliction of emotional distress and a new cause of action for negligence. The SAC newly alleges that “Plaintiff proceeded with the entire arbitration process, through its final conclusion, that involved post-decision motions and requests for costs by the parties. Indeed, the

final order in the arbitration matter was issued on May 24, 2024, when the Superior Court for the County of Santa Clara confirmed the judgment on the arbitration award.” (SAC, ¶ 21.)

There is no dispute that the applicable statute of limitations as to the SAC’s causes of action is two years. (See Pl.’s opposition to demurrer (“Opposition”), p.11:9-10 (stating that “the plaintiff brought suit within the applicable two-year statute of limitations”).) Rather, parties dispute as to whether the cause of action accrues on the May 24, 2024 arbitration award date or Defendant’s conditional denial of Plaintiff’s claim may constitute the date of accrual for each of the causes of action and whether the doctrine of equitable tolling applies. Defendant asserts that the

As stated in *Bennett v. Ohio National Life Assurance Corp.* (2023) 92 Cal.App.5th 723, “[t]he statutes of limitation ‘dictate the time period within which a cause of action may be commenced... [b]ut the statutes of limitation ‘do not begin to run until a cause of action accrues.’” (*Id.* at pp.728-729, quoting *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) “Generally, a cause of action accrues when it is ‘complete with all of its elements.’” (*Id.* at p.729.) “Where damages are an element of a cause of action, the claim ‘does not accrue until the damages have been sustained.’” (*Id.*) “Under these principles, claims for breach of contract and bad faith regarding disability insurance payments do not accrue until there is a breach and the plaintiff sustains damages.” (*Id.*) Rather, a cause of action for breach of the covenant of good faith and fair dealing accrues when the insurer withholds benefits pursuant to the policy or issues an unequivocal denial in writing; in contrast, when the insurer continues to provide benefits despite a denial of the insured’s claim, the cause of action has not yet accrued. (*Id.* at pp.730-732; see also *Prieto v. State Farm Fire & Casualty Co.* (1990) 225 Cal.App.3d 1188, 1194 (stating that “the claim for bad faith in denial of the accidental death benefit did not accrue until the insurer formally rendered its denial... ‘[p]rior to such time Mrs. Frazier has a right (so far as the policy limitation is concerned) to sit back and wait until denial of claim before urging bad faith’”); see also *Carr v. Progressive Casualty Ins. Co.* (1984) 152 Cal.App.3d 881, 889 (stating

that a “bad faith cause of action does not accrue until suit may be brought and such a suit ‘may not be brought until the action between the injured party and the insured is concluded’”); see also *Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, 604 (stating that “[t]he statute is tolled from the time the insured gives notice of the claim to the insurance company until ‘the time the insurer formally denies the claim in writing’ ... [t]his has been construed to mean ‘unequivocal’ denial in writing”).)

The SAC alleges that while Defendant denied Plaintiff’s demand, Defendant also conditioned any rights to receive the benefits pursuant to the policy on Plaintiff’s participation in arbitration so as to resolve any issue. This is not an unequivocal denial in writing. Defendant cites to *Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136; however, the cited page of *Love* is inapposite. It is true that, as *Love* states, that “[w]here benefits are fully and promptly paid, no action lies for breach of the implied covenant—no matter how hostile or egregious the insurer’s conduct toward the insured may have been prior to such payment.” (*Love, supra*, 221 Cal.App.3d at pp.1151-1152.) However, in *Love*, the court determined that there was no bad faith because the plaintiff’s claims to benefits were already time-barred and thus, benefits were neither withheld nor delayed. (*Id.*) Here, Plaintiff’s claims to benefits were not time-barred. Defendant also cites to a federal case to support its assertion that a cause of action accrues regardless of whether arbitration has occurred (see Def.’s memo p.7:10-18); however, as the December 17, 2025 order noted, this court is “not bound by federal decisions on matters of state law.” (*Haynes v. EMC Mortgage Corp.* (2012) 205 Cal.App.4th 329, 335.) In reply, Defendant also cites to *McIsaac v. Foremost Ins. Co. Grand Rapids, Michigan* (2021) 64 Cal.App.5th 418, to support its argument that the arbitration cannot toll the limitations period for the bad faith claim because the arbitration and bad faith action involve different rights and remedies; however, *McIsaac* did not discuss the doctrine of equitable estoppel at all. The doctrine of equitable tolling has otherwise applied to the statute of limitations for a subsequent bad faith insurance claim. (See *Prudential-LMI Com. Insurance v. Super. Ct. (Lundberg)* (1990) 51 Cal.3d 674, 692-693 (California Supreme Court); see also *Saint Francis Memorial Hospital v. State Dept. of*

Public Health (2020) 9 Cal.5th 710, 725-726.) Defendant fails to otherwise support its assertion that the arbitration neither tolls the statute of limitations nor affects the accrual of a cause of action.

Defendant's demurrer to each of the causes of action of the SAC on the ground that they fail to state facts sufficient to constitute a cause of action because they are time-barred is **OVERRULED**. Defendant fails to demonstrate Plaintiff's causes of action accrued before the May 24, 2024 arbitration award date or that the doctrine of equitable estoppel applies to the arbitration proceedings.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 6

Case Name: *Kumar v. County of Santa Clara, et al.*

Case No.: 25CV474000

Defendant County of Santa Clara, erroneously sued as Office of Supportive Housing ("County"), demurs to each of the causes of action of the first amended complaint ("FAC") of plaintiff Ravnir Kumar ("Plaintiff") on the ground that they fail to state facts sufficient to constitute a cause of action.

As County notes, Government Code section 911.2 requires that a claim related to a plaintiff's injury to his or her person or personal property be filed "not later than six months after the accrual of the cause of action." (Gov. Code § 911.2.) The FAC alleges a number of acts that Plaintiff contends could be a basis for a cause of action—an August 2022 promise by County's

reentry resource center staff member Brian Evans that was not fulfilled; a January 2023 ridiculing of plaintiff by an employee of a separate, non-demurring defendant; a May 2023 statement by County staff member Girley Taylor who stated to Plaintiff that his ESUP application was missing requirements; the October 2024 wrongful termination of Plaintiff's MediCal benefits; the January 2025 hanging up on Plaintiff by an employee of a separate, non-demurring defendant; the February 12, 2025 breach of a promise by an employee of a separate, non-demurring defendant; and the March 27, 2025 statement by County employee Steve Preminger who stated that he was "done responding." However, the FAC also alleges that Plaintiff did not file his claim until November 4, 2025—more than six months after the last alleged act. Further, Plaintiff filed the FAC on November 17, 2025; however, the FAC fails to allege that the claim was acted upon or deemed rejected prior to the filing of the FAC. Judicially noticeable facts indicate that on December 4, 2025, County sent Plaintiff a Notice of return Without Action letter because of Plaintiff's failure to present the claim "within six months of the event or occurrence as required by law." Government Code section 945.4 states that "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board." (Gov. Code § 945.4.) "Failure to allege compliance renders the complaint in such an action subject to general demurrer." (*Briggs v. Lawrence* (1991) 230 Cal.App.3d 605, 613 (Sixth District case).) Accordingly, County's demurrer to the first and second causes of action on the ground that the fail to allege compliance with the Government Claims Act is SUSTAINED on this basis.

Further, as County argues, Plaintiff cannot allege a cause of action for fraud against County as Government Code section 818.8 plainly states that "[a] public entity is not liable for an injury caused by misrepresentation by an employee of the public entity, whether or not such misrepresentation be negligent or intentional." Accordingly, County's demurrer to the first cause of action for fraud is SUSTAINED without leave to amend on this basis.

Nor may Plaintiff allege a cause of action for common law negligence against County. (See *Hilts v. County of Solano* (1968) 265 Cal.App.2d 161, 170-171 (stating that “the liability of County could only be statutory and could not rest on a theory of common law negligence... [t]he cases do make plain, however, that a verdict against a county must be overturned if it is erroneously based on a negligence theory”); see also Gov. Code § 815, subd. (a) (stating that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person”); see also *Ellerbee v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1214, 1216 (stating that “[t]he County is correct that its liability, if any, cannot arise out of the common law... [section 815, subdivision (a)] abolished all common law or judicially declared forms of liability... the trial court erred when it denied the County’s motion for judgment on the pleadings and allowed the action to proceed to trial on a theory of common law negligence”).) Accordingly, County’s demurrer to the second cause of action for common law negligence is SUSTAINED without leave to amend on this basis.

As to the third cause of action for violation of the Americans with Disabilities Act, “statutory causes of action must be pleaded with particularity.” (*Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4th 771, 790.) Here, the FAC fails to identify Plaintiff’s alleged disability and does not allege any facts supporting the denial of or exclusion from services, programs or activities due to a disability. (See *Duvall v. County of Kitsap* (9th Cir. 2001) 260 F.3d 1124, 1135 (stating that “a plaintiff must show: (1) he is a “qualified individual with a disability”; (2) he was either excluded from participation in or denied the benefits of a public entity’s services, programs, or activities, or was otherwise discriminated against by the public entity; and (3) such exclusion, denial of benefits, or discrimination was by reason of his disability”).) Moreover, the cause of action is premised on “written communications for ESUP applications” which occurred in May 2023 when Taylor claimed that Plaintiff’s ESUP application was “missing requirements but refused to specify in writing, stonewalling Plaintiff’s employment efforts.” However, as County notes, this statement regarding missing requirements

occurred more than two years after the FAC was filed. Other alleged acts regarding denial of housing accommodations are alleged to be done by separate, non-demurring defendants and thus cannot be a basis for a cause of action against County. County's demurrer to the third cause of action is SUSTAINED with 10 days leave to amend.

As to the fourth cause of action for violation of 42 U.S.C. § 1983, again, "statutory causes of action must be pleaded with particularity." (*Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4th 771, 790.) Here, the FAC fails to allege facts supporting and identifying both a constitutional violation and a policy by County that caused Plaintiff's harm. (See *Johnson v. City of Seattle* (9th Cir. 2007) 474 F.3d 634, 638 (stating that "municipalities are only liable under Section 1983 if there is, at minimum, an underlying constitutional tort"); see also *AE v. County of Tulare* (9th Cir. 2012) 666 F.3d 631, 636 (stating that "[p]laintiffs must establish that 'the local government had a deliberate policy, custom, or practice that was the moving force behind the constitutional violation [they] suffered'"); see also *Mehta v. City of Sunnyvale* (N.D.Cal. 2024) 721 F. Supp. 3d 1041, 1049 (stating that "[a]n isolated incident of unconstitutional conduct by an officer is insufficient to establish a policy or custom to render a municipality liable").) Further, the fourth cause of action fails to allege facts suggesting that County actually intended to harm Plaintiff, thereby constituting "deliberate indifference." (See *Connick v. Thompson* (2011) 563 U.S. 51, 62 (stating that "'[d]eliberate indifference' is a stringent standard of fault, requiring proof that a municipal actor disregarded a known or obvious consequence of his action... [m]unicipal liability under § 1983 attaches where--and only where-- a deliberate choice to follow a course of action is made from among various alternatives by [the relevant] officials"); see also *Murguia v. Langdon* (9th Cir. 2023) 61 F.4th 1096, 1111 (stating that "[f]or a defendant to act with deliberate indifference, he must 'recognize the unreasonable risk and actually intend to expose the plaintiff to such risks without regard to the consequences to the plaintiff'... [t]his standard is higher than gross negligence and requires a culpable mental state").) In opposition to the demurrer, Plaintiff fails to address County's arguments regarding the identification of a constitutional violation, how that right was violated, the identification of a

County policy, how the policy caused Plaintiff's injuries, or deliberate indifference. "By failing to argue the contrary, plaintiffs concede this issue." (*DuPont Merck Pharmaceutical Co. v. Super. Ct. (Newman)* (2000) 78 Cal.App.4th 562, 566; see also *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 (stating that as "Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs...we deem plaintiffs to have abandoned the issue"); see also *Arnold v. Dow Chemical Co.* (2001) 91 Cal.App.4th 698, 729 (stating that "[b]ecause appellants have not briefed that issue on appeal, the issue is abandoned"); see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 (stating that "failure to address the threshold question of intent effectively concedes that issue"); see also *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (stating that "appellants impliedly concede by failing to address the statute").) Plaintiff also fails to assert how he can possibly amend the cause of action so as to state a viable claim. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (stating that "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading").) County's demurrer to the fourth cause of action is SUSTAINED without leave to amend.

County shall prepare and submit a proposed final order consistent with this tentative ruling.